

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
July 20, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2020-01129017 Aguilar vs. Vallejos Transport, Inc.	Defendant's counsel has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Defendant has shown that the

		administration of the settlement is complete, the court's file is now closed. The court also VACATES the February 2, 2026 Order to Show Cause why the court should not impose monetary sanctions against Defendant's counsel for failing to comply with the court's January 10, 2025 order to file all supporting papers for the Final Report Hearing at least 16 days before the Final Report Hearing date. Defendant is ordered to give notice of this ruling to the LWDA and Plaintiff.
2	30-2023-01337256 Molina vs. AMM Market, Inc.	The tentative ruling is to continue the Final Report Hearing to August 7, 2028 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of this ruling to Defendant.
3	30-2023-01354711 Huber vs. Evolve Dental Technologies, Inc.	The tentative ruling is to continue the Final Report Hearing to September 7, 2026 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. IT IS ORDERED THAT within ten (10) days of this ruling, the settlement administrator shall transfer the "amount of the Individual Settlement Share to the California State Controller's Unclaimed Property Division in accordance with California Unclaimed Property Law so that the Participating Class Member and Eligible Aggrieved Employees will have his or her payments available to him or her per the applicable claim procedure to request that money from the State of California." (Settlement § III(H)(5).) The settlement administrator shall provide a supplemental declaration confirming this transfer at least 16 days before the continued Final Report Hearing date.

		Plaintiff is ordered to give notice of this ruling to Defendant.
4	30-2019-01114752 Scoggins vs. Taber Company, Inc.	The tentative ruling is to continue the hearing on Plaintiff L'Renzo Vincente Scoggins' ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement to November 2, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be re-read) at least 16 days before the next hearing date. An enhancement award of \$7,500 is sufficient and proper for a class and settlement of this size, based on plaintiff's contribution to the case. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. There is no explanation for the change in the number of aggrieved employees to 338, when the number was estimated, to be 256 at the preliminary approval stage. An invoice from the Administrator is required to support the \$11,410.00 Administrator fee request. Plaintiff must provide a [Proposed] Order and Judgment, which must include the following: • The [Proposed] Order and Judgment must identify the putative class member who opted out and thus will not be bound by the judgment. • The [Proposed] Order must be captioned as [Proposed] Order and Judgment. • The [Proposed] Order and Judgment must also provide how the parties will comply with CRC Rule 3.771(b), which states: "Notice of the judgment must be given to the class in the manner specified by the court." The notice may be included with the checks that are mailed to the class members or posted on the administrator's website. • The [Proposed] Order and Judgment must not include a dismissal of the action pursuant to Cal. R. Ct., R. 3.679(h).

		Counsel should propose a realistic Final Report Hearing date and include it in the [Proposed] Order and Judgment, taking into account the time deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the class members. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
5	30-2017-00933266 Bamossy vs. Bloomingdales, Inc.	Plaintiff Shahla Bamossy's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") and Plaintiff's Motion for PAGA Representative Service Payment, Attorney Fees, and Costs are GRANTED IN PART. The court finds that the enhancement awards identified below are sufficient and proper for a class and settlement of this size, based on each plaintiff's contribution to the case. The court also finds that an attorneys' fee award totaling \$2,251,500.00 or 30% of the Gross Settlement Amount, which constitutes a 1.08 multiplier of the lodestar amount, is fair, adequate and reasonable for the class and settlement of this size, contingent nature of representation and the results achieved. The court concludes that the \$7,505,000.00 PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$2,251,500.00 (\$914,030.35 to The Graves Firm, \$914,030.35 to Schneider Wallace Cottrell Kim LLP, \$85,714.30 to Nosrati Law, and \$337,725.00 to Whitehead Law) to plaintiffs' counsel for plaintiffs' attorneys' fees, reduced from the \$2,626,750.00 requested; • \$160,328.43 (\$27,870.60 to Schneider Wallace Cottrell Kim LLP, and \$132,457.83 to The Graves Firm) to

		plaintiffs' counsel for plaintiffs' litigation costs, as requested; • \$42,500.00 (\$15,000.00 to Shahla Bamossy, \$5,000.00 each to Alex Bhagatram, Soraya Lodin, Ha Nguyen, Alicia Taylor and Michael Webster, and \$2,500.00 to Farinasp Zamani) to Plaintiffs as enhancement awards, reduced from the \$75,000.00 requested; • \$26,995.00 to Phoenix Settlement Administrators, the settlement administrator, as requested; • \$3,796,444.93 to the LWDA for its share of PAGA penalties; and • \$1,265,481.64 to the aggrieved employees for their share of PAGA penalties. The court sets a Final Report Hearing for November 22, 2027 at 1:30 p.m. to confirm that distribution efforts are fully completed, including the distribution of uncashed aggrieved employee checks after 180 days, that the Administrator's work is complete, and that the court's file thus may be closed. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiffs are ordered to give notice of the ruling to the LWDA and Defendants.
6	30-2022-01289186 McDonald vs. The Management Association, Inc.	The hearing on plaintiff's motion for approval is CONTINUED to November 16, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief shall be filed at least 16 days before the hearing and shall address as necessary each of the below points. The parties must provide redlined versions of all revised documents (e.g., revised settlement agreement, revised notice, revised proposed order) and any settlement provisions revised via amendment. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$684,000 PAGA settlement. The court has the following questions and comments: 1. Were all moving papers submitted to the LWDA? Plaintiff must file with the court an actual proof of service identifying the specific documents served

		on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The parties should provide plaintiff's total anticipated consideration to be received (including for any individual claims). 3. The escalator provision (§ 8.1) provides two options, one of which defendant must have elected no later than 30 days prior to the initial settlement approval hearing. § 8.1. Prior to settlement approval, the parties must determine (1) whether the escalator provision has been triggered, (2) the final gross settlement amount, and (3) the final PAGA Period. 4. The "Released Parties" provision (§ 1.26) is overbroad. It includes unrelated, ambiguous and/or unidentified third parties including "affiliated entities, related entities" and "affiliates" which should be removed. 5. The "Release by Aggrieved Employees" (§ 5.2) is overbroad. Delete the following: "all civil penalties, costs, expenses, attorneys' fees, claims, or interest for any Labor Code or Wage Order violation alleged or reasonably could have been alleged, based on the PAGA Period facts stated in the Complaint and/or the PAGA Notice, including but not limited to claims for violations of the California Labor Code sections 96, 98.6, 200, 201, 202, 203, 204, 210, 226, 226.3, 226.7, 232.5, 246, et seq., 432, 510, 512, 558, 1102.5, 1174, 1174.5, 1194, 1197, 1197.1, 1198.5, 2699, 2802, 2810.3, 2810.5, among other, and Business and Professions Code section 17200, et seq., and the applicable California Industrial Welfare Commission Wage Orders, and any other claims, including claims for statutory and/or civil penalties." Insert the following: "all claims for PAGA penalties that were alleged, or reasonably could
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		have been alleged, based on the PAGA Period facts stated in the Complaint and/or the PAGA Notice.” 6. Plaintiff’s counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 7. Plaintiff’s counsel seeks attorneys’ fees totaling 1/3 of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys’ fees award that exceeds 30% of the gross settlement amount. If Plaintiff’s counsel seeks fees in excess of 30%, Plaintiff’s counsel should address in the supplemental filing whether any such unique circumstances exist here. 8. Plaintiff’s counsel asserts the lodestar is \$270,514 based on 360.6 hours incurred. ROA 80 ¶ 26. Were all those hours incurred in this action? If not, counsel should set forth the lodestar in this PAGA-only action, excluding hours incurred in the class action. 9. Plaintiff’s counsel seeks \$19,035.41 in costs. Plaintiff’s counsel should submit invoices supporting the expert and mediation fees. Additionally, it appears counsel seeks costs for plaintiff’s related class action. Counsel should explain why it is fair and reasonable that those costs should be deducted from the gross settlement amount in this PAGA-only action and would serve to reduce the amounts recovered by the LWDA and Aggrieved Employees. 10. Plaintiff seeks an enhancement award of \$7,500. The court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. If Plaintiff seeks an enhancement in excess of \$5,000, Plaintiff should address in the supplemental filing whether any such unique circumstances exist here. <u>As to the notice letter:</u>
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		11. The notice letter should be revised consistent with the above. 12. Revise the release and released parties provisions, as explained above. 13. Include the financial terms of the settlement. 14. Add “and entered judgment” after “Claims” in the first sentence of paragraph 6. 15. Inform aggrieved employees they cannot exclude themselves from the settlement. 16. Inform aggrieved employees they will not be retaliated against for cashing their check. <u>As to the proposed order and judgment:</u> 17. The proposed order and judgment should be revised consistent with the above. 18. The length is excessive and needlessly includes multiple paragraphs from the settlement verbatim. Delete paragraphs 4, 5, 7, 12, 15, 18, 19, 20, and 21. 19. Identify and attach the settlement and the notice (including any translations) as exhibits. ¶¶ 1, 11, 18. 20. Include the amount of the GSA. ¶ 22. 21. Delete “one-third (1/3) of the Gross Settlement Amount, which, unless increased pursuant to the Settlement Agreement, amounts to \$228,000.00” from paragraph 23. 22. The same overbreadth issues identified above apply to the release (¶ 25) and released parties (¶ 26). 23. The court conducts final accounting hearings on Mondays at 1:30 p.m. ¶ 28. The proposed order and judgment shall state that counsel shall submit a final administrator’s report at least 16 days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts
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		distributed under the settlement, including any uncashed checks. <i>Id.</i> Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents and file a proof of service.
7	30-2024-01409560 Barroso vs. Applied Composites Holdings, LLC	The hearing on plaintiff's motion for approval is continued to November 16, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief shall be filed at least 16 days before the hearing and shall address as necessary each of the below points. The parties must provide redlined versions of all revised documents (e.g., revised settlement agreement, revised notice, revised proposed order) and any settlement provisions revised via amendment. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$400,000 PAGA settlement. The court has the following questions and comments: <u>As to the Settlement:</u> 1. The definition of "defendant" is incorrect. ¶ 2. The defendant is only "Applied Composites Holdings, LLC." No other definition will be approved. 2. The parties must confirm the final gross settlement amount, i.e., whether the escalator provision (¶ 15(c)) has been triggered. 3. The settlement incorrectly cites ¶ "13(c)" as the escalator provision. ¶ 14. 4. The release provision (¶ 19(a)) is overbroad and/or vague. It should be replaced in its entirety with the following: "Upon the Effective Date and subject to Defendant's full payment of the Gross Settlement Amount, Plaintiff, on behalf of herself, her heirs, executors, and assigns, the Aggrieved Employees, and the State of California, fully releases and discharges Defendant, and each of its subsidiaries, parent companies, successors, predecessors, and assigns, and each of their respective shareholders, officers, partners, directors, employees, agents,

		successors, and assigns (collectively, “Released Parties”) from any and all claims for civil penalties under PAGA, which were alleged or which could reasonably have been alleged based on the facts asserted in the Operative Complaint in the Action and/or in Plaintiff’s PAGA notice to the LWDA dated June 22, 2024 (“PAGA Released Claims”) that accrued during the Settlement Period, including claims for failure to pay for all hours worked, including overtime, provide all meal periods or premium compensation in lieu thereof, authorize and permit all rest breaks or premium compensation in lieu thereof, maintain accurate records, pay all vacation wages at termination, reimburse all necessary business expenses, timely pay all wages during employment and due upon separation of employment, issue complete and accurate wage statements, and for violation and/or based on California Labor Code §§ 201, 202, 203, 204, 210, 245, 246, 226, 226.3, 226.7, 227.3, 510, 512, 558, 1174, 1174.5, 1194, 1194.2, 1197, 1197.1, 1198, 2699, 2699.3, 2802, the corresponding provisions of the applicable IWC Wage Order, and all claims for attorneys’ fees and costs in connection therewith.” 5. Plaintiff’s counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 6. Plaintiff’s counsel seeks attorneys’ fees totaling 1/3 of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys’ fee award that exceeds 30%. 7. Plaintiff’s counsel seeks litigation costs in the amount of \$22,626.94. ROA 54 ¶¶ 72, 82-83 Ex. 4. Paid invoices substantiating the mediation fee request (\$17,000) and expert (\$3,420) must be provided before these costs are reimbursed. 8. The court is unlikely to approve an enhancement award in excess of \$5,000 for plaintiff absent unique circumstances. Notably, an enhancement award is not intended to compensate the named plaintiff for a general release of claims. <u>As to the Notice:</u>
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		9. The notice should be revised consistent with the above. 10. Is it correct to refer to plaintiff as “himself?” ¶ 2. 11. Explain the financial terms of the settlement, including the relative portions and amounts for the LWDA and Aggrieved Employees. ¶ 4. 12. The same issues identified above apply to the PAGA Released Claims and Released Parties. ¶ 5. 13. Does the notice need to be prepared in languages other than English? 14. Inform aggrieved employees they cannot exclude themselves from the settlement. 15. Inform aggrieved employees they will not be retaliated against for cashing their check. <u>As to the Proposed Order and Proposed Judgment:</u> 16. The proposed order (ROA 48) and proposed judgment (ROA 59) should be combined in a non-duplicative single document, i.e., “Proposed Order and Judgment.” 17. The proposed order and judgment should be revised consistent with the above. <u>As to the proposed order (ROA 48):</u> 18. Delete the following from paragraph 2: “In granting settlement approval, the Court has considered the factors identified in O’Connor v. Uber Technologies (N.D. Cal. 2016) 201 F.Supp.3d 1110, Villalobos v. Calandri Sunrise Farm LP (C.D. Cal. July 22, 2015) No. CV 12-2615 PSG (JEMx), 2015 WL 12732709, and other relevant authority providing a coherent framework for evaluating this Settlement.” Combine the remainder of paragraph 2 with paragraph 3. 19. Remove the “at least” qualifiers from paragraphs 7, 10. 20. The same issues identified above apply to the release and the released parties. ¶ 12. 21. The parties must determine whether the escalator provision has been triggered. ¶ 13. 22. Delete paragraph 16. <u>As to the proposed judgment (ROA 59):</u>
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		23. Delete paragraph 1. 24. The operative settlement and notice (including any translations) should be identified and attached as exhibits. 25. Delete paragraph 10. 26. Add a paragraph providing: “This order shall constitute a judgment for purposes of California Rules of Court, Rule 3.769(h).” 27. Propose a date for a final accounting hearing. The court conducts final accounting hearings on Mondays at 1:30 p.m. The proposed order and judgment shall state that counsel shall submit a final administrator’s report at least 16 days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
8	30-2023-01333990 Diaz vs. Silverado Senior Living Management, Inc.	The tentative ruling is to continue Plaintiff Marlene Del Carmen Leonor Diaz’s (“Plaintiff”) Motion for Preliminary Approval of Class Action and PAGA Settlement to November 9, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys’ fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of

		this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff must provide documentation and support for any request higher than this percentage at the final approval stage. The parties have not provided the court with any declaration from Defendant's counsel as to any potential conflict of interest as to the proposed cy pres recipient, as required by CCP §382.4. The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. The Request for Exclusion form should be referenced in the appropriate sections of the class notice so that class members are informed that they may use the form to request exclusion from the class settlement. The class release in the Definitions section, Paragraph 31, must be amended to remove the phrase: "This release shall apply to any and all claims arising at any point during the Class Period." The release may only include claims actually made in the complaints in this action, or that arise from the facts alleged in this action during the Class Period. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
10	30-2025-01487413 Alvarez vs. ASAS Group, Inc.	The tentative ruling is to continue Plaintiff Miguel A. Huerta Alvarez's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to November 16, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and

		the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff shall provide documentation and support for any request higher than this percentage at the final approval stage. The motion fails to provide the class members' and aggrieved employees' estimated high and low payments. The average payment must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. Paragraphs 7.6 and 7.8.4 of the settlement agreement state that the Administrator will resolve any workweek disputes. The documents should reflect instead that, while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute. Paragraph 7.5.2 of the settlement agreement states that the Administrator shall make the final determination as to the authenticity of an opt-out request. The documents should reflect instead that the court will ultimately decide any unresolved dispute regarding the authenticity of an opt-out request. The moving papers do not include a copy of the LWDA letter that counsel asserts was sent to the LWDA on May 23, 2025. (Gomez Dec. ¶ 4.) The court needs a copy of the letter to verify that the settlement terms are consistent with the notice provided to the LWDA. The Class Period is defined as ending on February 6, 2026. However, the escalator clause in Paragraph 8 of the settlement agreement provides for the option to either increase the settlement amount or change the Class and PAGA Periods
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		such that some of the class members and aggrieved employees might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members being told they are in the settlement but later being told they are not included in the settlement. Thus, defendant will have to either rely on or take another look at its estimated number of class members, or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class Period, rather than an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice, and have the class notice include the adjusted end date, and not be sent to non-participants. The following corrections must be made to the class notice: • Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice. • The administration costs of \$4,990.00 should be included in Section 7 of page 4 of the class notice. • Section 14 on page 7 of the class notice should note that class members who exclude themselves may get money from the PAGA penalties portion of the settlement if they are an aggrieved employee. • Section 21 on page 9 of the class notice should be amended to state: “If you do nothing, and the court grants final approval of the settlement, you will receive a Settlement payment, and you will be bound by the terms of Settlement, which means that you will not be able to start a lawsuit, continue a lawsuit, or be a part of any other lawsuit against the Defendant about the legal issues in the Action.” Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
11	30-2024-01439280 Espina vs. J & E Hospitality Group Inc.	The tentative ruling is to continue the hearing for Counsel Jorge Ledezma of Ledezma Law, APLC’s (“Counsel”) Motion to Be Relieved as Counsel for Defendant Edgar Estrada Galindo to August 31, 2026 at 1:30 p.m. Counsel failed to provide proof of service of the Notice of Motion and Motion, Declaration, and Proposed Order on

		Plaintiff Erika Espina. (Cal. R. Ct., R. 3.1362(d) [“The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case.”].) IT IS ORDERED THAT Counsel must provide such proof of service within five (5) days of this ruling.
12	30-2024-01384236 Doe vs. Pacific Dental Services, LLC	Defendant Pacific Dental Services, LLC (“PDS”), Amardeep Gill and Reymond Bautista Dental Corporation (“El Cerrito”), and Dhaval Patel and Amardeep Gill Dental Corporation’s (“Alamo Smiles”) (collectively, “Defendants”) Motion to Compel Further Responses to Interrogatories from Plaintiffs Janet Doe and Jane Doe (collectively, “Plaintiffs”) is DENIED AS MOOT as to the Special Interrogatories propounded by Defendants El Cerrito and Alamo Smiles, who have since been dismissed from this action. Contrary to PDS’ contention in its reply, only “the propounding party may move for an order compelling a further response . . .” (CCP § 2030.300(a) [emphasis added].) The court also DENIES the Motion as to PDS’ Special Interrogatory (“SROG”) (Set One) Nos. 3, 7, 25–28, 30–32, 34, and 38 propounded on Plaintiff Jane Doe (“Jane”). The court finds that, under the circumstances, Jane’s responses adequate and code-compliant. <u>SROG Nos. 3 and 7</u> These interrogatories ask which dates Jane visited Defendant El Cerrito’s website and which parts she visited, and Jane responded by referencing a text document containing her browser history and identifying the parts of the website that she visited. Defendants complain that the browser history is thousands of pages long, but Plaintiff contends that the documents are legible to Plaintiffs’ counsel, understandable by Defendants’ experts, and are large text files (.json) that can be searched using the Control+F functionality. “If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer

		to this section and to specify the writings from which the answer may be derived or ascertained.” (CCP § 2030.230 [emphasis added].) “This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained.” (<i>Id.</i>) “There is statutory precedent in California for placing the burden of research on the propounder of the interrogatory where the records from which the research is to be done are equally available to him.” (<i>Bunnell v. Superior Ct. of Alameda Cnty.</i> (1967) 254 Cal. App. 2d 720, 724.) For example, “where the answer to an interrogatory may be derived or ascertained from the business records of the party to whom such interrogatory is addressed, it is a sufficient answer to such interrogatory to specify the records from which the answer may be derived or ascertained and to afford to the propounder a reasonable opportunity to examine such records and to make copies thereof or compilations, abstracts or summaries therefrom.” (<i>Id.</i>) “Upon analogy, it becomes apparent that when the material to be ‘discovered’ consists . . . solely of information available to both parties, it defeats the purpose of the Discovery Act to compel one party to perform another party's research, whether such be laborious or not.” (<i>Id.</i>) In <i>Bunnell</i>, a party was asked to identify witnesses and the response was essentially “persons mentioned at prior trials and depositions.” (<i>Id.</i> at 722.) The appellate court found that response sufficient because there was “nothing to discover insofar as the identity of the witnesses is concerned in view of plaintiff's answer that there are no witnesses other than those mentioned in the depositions and at the previous trials, transcripts of which are in defendant's possession.” (<i>Id.</i> at 723.) “[T]he question is <i>who</i> will have the onus of researching these transcripts for the purpose of listing the names of the witnesses in order to lay a foundation for the exclusion of witnesses whose identity has not been disclosed.” (<i>Id.</i>) The court concluded that the onus was on the propounding party because “the purpose of the Discovery Act is to permit a party to prepare himself for trial, not to require one party, at his expense, to prepare the case for his opponent.” (<i>Id.</i>) Here, Jane identified specific documents from which Defendants can search for the requested information. The burden to locate that information is equal for both parties and their experts, so the onus should be on Defendants as the propounding party to do the research to find the requested
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information. Accordingly, no further response from Jane is required.

SROG Nos. 25-28

These interrogatories seek facts regarding the personal information purportedly collected by the trackers on Defendants' websites and how Jane learned of the trackers. In response, Jane states: "Plaintiff clarifies that she, as a layperson, does not possess any personal knowledge, information, or documents regarding the specific details of how and where from Defendant's obtained her personal information and therefore cannot respond to this request at this time and relies on her expert(s) regarding the specific details of Defendant's alleged disclosure of her personal information." Plaintiffs contend that the information responsive to these interrogatories regarding the functionality of the trackers are within Defendant's knowledge and possession.

Defendant provides no evidence that Jane has the technical or other factual knowledge of what information is collected by the trackers on Defendants' websites, or that she is withholding any responsive information. The court finds that no further response from Jane is required.

SROG Nos. 30-32 and 34

These interrogatories seek facts regarding the alleged disclosure of Plaintiffs' personal information by Defendants. Jane objected to this discovery request, asserting that the requested information is within the purview of Defendants and her expert(s). Plaintiffs contend that the only documents and information that exist are expert/lawyer work product from before the filing of the complaint, and Defendant said it did not want that. Plaintiffs contend that the information responsive to the request will be in documents produced by Defendant. Jane states that she has requested this exact information from Defendant, but Defendant has refused to produce it.

Defendant provides no evidence that Jane has the technical or other factual knowledge of Defendant's disclosure of personal information, and she has explained that she cannot respond to the request without access to Defendant's documents. The court finds that no further response from Jane is required.

SROG No. 38

		This interrogatory seeks information regarding the dates that Jane received online advertisements. Jane stated in response: “Plaintiff does not currently recall the exact dates she received any advertisements following her use of https://www.dentistsofclercerritoplaza.com/. Plaintiff expressly reserves the right to supplement or amend this response as new information is learned.” The court finds that this response is adequate, and Defendants have provided no evidence that Jane is withholding any information regarding targeted online advertisements. No further response from Jane is required. Defendants are ordered to give notice of this ruling to Plaintiffs.
13	30-2025-01537543 Tapia Cruz vs. Aero Power Services, a California corporation	Defendant Aero Power Services’ (“Defendant”) Motion to Compel Arbitration of Plaintiff Alejandra Tapia Cruz’s (“Plaintiff”) Individual Claims and for Dismissal of Class Claims is GRANTED. IT IS ORDERED THAT Plaintiff’s individual claims in this action are compelled to arbitration pursuant to the parties’ arbitration agreement, Plaintiff’s class claims are dismissed, and this action is STAYED pending completion of arbitration. The court sets an ADR status conference for February 18, 2027 at 9:00 a.m. The court SUSTAINS Defendant’s objections to Plaintiff’s counsel, Gabriella Sole’s declaration regarding Plaintiff’s language skills as counsel’s statements lack foundation. The court concludes that there exists a valid agreement to arbitrate the employment-related claims asserted by Plaintiff and that no grounds exist to bar enforcement of the agreement. (CCP § 1281.2.) The parties do not dispute the existence of the September 1, 2023 arbitration agreement signed by Plaintiff when she began her employment with Defendant. (Phuong Dec. ¶¶ 4-5, Ex. A.) The court finds that the Federal Arbitration Act (“FAA”) governs the subject arbitration agreement. “The United States Supreme Court has identified “three categories of activity that Congress may regulate under its commerce power: (1) ‘the use of the channels of interstate commerce’; (2) ‘the instrumentalities of interstate commerce, or persons or things in interstate commerce, ...’; and (3) ‘those activities having a substantial relation to interstate commerce, ... i.e., those

		activities that substantially affect interstate commerce.” (<i>Evenskaas v. California Transit, Inc.</i> (2022) 81 Cal. App. 5th 285, 293.) “[T]he FAA encompasses a wider range of transactions than those actually ‘in commerce’—that is, ‘within the flow of interstate commerce[.]’” (<i>Id.</i>) “Consistent with Congress’s power to regulate an entire class of activity, FAA preemption does not require that an agreement has a specific effect on interstate commerce.” (<i>Id.</i>) “The FAA applies even ‘in individual cases without showing any specific effect upon interstate commerce’ if in the aggregate the economic activity in question would represent ‘a general practice ... subject to federal control[.]’” (<i>Id.</i> at 294.) Defendant’s office manager, Paul Phuong states: “Defendant fabricates and assembles airplane parts and components. Defendant’s clients are other airplane part fabrication companies. The parts and components Defendant fabricates or assembles are then passed onto Defendant’s customers, who then adds other parts to those components. These parts and components eventually are installed onto airplanes, which could ultimately be flown nationally or internationally. The parts and components Defendant fabricates are shipped to other airplane part manufacturing companies all over California.” (Phuong Dec. ¶ 3.) The court finds that these facts demonstrate that Defendant’s business activities substantially affect interstate commerce, and therefore the FAA applies to the subject arbitration agreement. As the FAA applies, Plaintiff’s arguments as to unenforceability of the agreement pursuant to California Labor Code sections 229 and 432.6 are without merit as these statutes are preempted by the FAA. (<i>Perry v. Thomas</i> (1987) 482 U.S. 483, 491 [“[U]nder the Supremacy Clause, the state statute [Cal. Lab. Code § 229] must give way [to the FAA].”]; Cal. Lab. Code § 432.6(f) [“Nothing in this section is intended to invalidate a written arbitration agreement that is otherwise enforceable under the Federal Arbitration Act.”].) The court also finds that the arbitration agreement is enforceable. Plaintiff has failed to meet her burden of proving the facts of any defense to enforceability. (<i>Chin v. Advanced Fresh Concepts Franchise Corp.</i> (2011) 194 Cal. App. 4th 704, 708.) “[U]nconscionability has both a ‘procedural’ and a ‘substantive’ element, the former focusing on ‘oppression’ or ‘surprise’ due to unequal bargaining power, the latter on ‘overly harsh’ or ‘one-sided’ results.” (<i>Armendariz v. Found.</i>
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		<i>Health Psychcare Servs., Inc.</i> (2000) 24 Cal. 4th 83, 114.) “The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (<i>Id.</i>) “But they need not be present in the same degree.” (<i>Id.</i>) “Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.” (<i>Id.</i>) “In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (<i>Id.</i>) As the subject arbitration agreement was a form contract and was imposed as a condition of employment, there is some level of procedural unconscionability attached to the subject agreement. However, Plaintiff fails to establish substantive unconscionability as the objectionable terms are either inapplicable, not unconscionable, or may be severed. Plaintiff contends that the purported agreement improperly places a shortened statute of limitations for non-statutory claims. However, the language of the agreement only requires arbitration within one year “if no statutory limitation is applicable.” (Phuong Dec., Ex. A.) Thus, this provision does not demonstrate any substantive unconscionability. Plaintiff also contends that the agreement is overly broad as to scope, as it requires that “Employee waives all rights to sue any clients of the Employer.” (<i>See, e.g., Cook v. Univ. of S. California</i> (2024) 102 Cal. App. 5th 312, 325 [“It is difficult to see how it is justified to expect Cook—as a condition of her employment at the university—to give up the right to ever sue a USC employee in court for defamatory statements or other claims that are completely unrelated to Cook’s employment. . . [T]he agreement’s broad scope is substantively unconscionable.”].) However, this term may be severed. (Cal. Civ. Code § 1670.5 [“If the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may . . . enforce the remainder of the contract without the
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		unconscionable clause . . .”].) Plaintiff argues that the agreement violates the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (“EFAA”) because the arbitration agreement requires arbitration of “claims of employment discrimination and harassment under Title VII of the Civil Rights Act.” The EFAA states that “no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C.A. § 402(a).) However, there is no such sexual assault or sexual harassment claim in this action, and Plaintiff fails to cite to any cases finding an arbitration agreement using similar broad language regarding Title VII claims unconscionable due to the EFAA. Accordingly, this language does not render the subject agreement unconscionable. Finally, Plaintiff argues that the arbitration agreement contains an illegal jury trial waiver. The agreement states that if the arbitration agreement is determined to be unenforceable, “the parties agree to waive any right they may have to a jury trial with respect to any dispute or claim relating to employment, termination from employment, or any terms and conditions of employment with the Employee.” (Phuong Dec., Ex. A.) The California Supreme Court “has made clear that predispute contractual jury trial waivers are unenforceable under California law.” (<i>Dougherty v. Roseville Heritage Partners</i> (2020) 47 Cal. App. 5th 93, 107.) However, this illegal predispute jury trial waiver may be severed. The court finds that Plaintiff has only demonstrated some level of procedural unconscionability, and any substantively unconscionable terms may be severed. The court finds that the remaining arbitration agreement is enforceable. As to Plaintiff’s class claims, the subject agreement is silent on the issue. Plaintiff argues that class arbitration is permitted because the agreement states: “The arbitrator shall have the power to award any type of legal or equitable relief that would be available in a court of competent jurisdiction.” At best, this language only introduces some ambiguity. The FAA “requires more than ambiguity to ensure that the parties actually agreed to arbitrate on a classwide basis,” as
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		under the FAA, arbitration “is a matter of consent, not coercion.” (<i>Lamps Plus, Inc. v. Varela</i> (2019) 587 U.S. 176, 183-184.) There is a fundamental difference “between class arbitration and the individualized form of arbitration envisioned by the FAA.” (<i>Id.</i> at 184.) Class arbitration ““sacrifices the principal advantage of arbitration—its informality—and makes the process slower, more costly, and more likely to generate procedural morass than final judgment.” (<i>Id.</i> at 185.) “Class arbitration not only ‘introduce[s] new risks and costs for both sides,’ . . . it also raises serious due process concerns by adjudicating the rights of absent members of the plaintiff class—again, with only limited judicial review.” (<i>Id.</i>) “[C]ourts may not infer consent to participate in class arbitration absent an affirmative ‘contractual basis for concluding that the party <i>agreed</i> to do so.’” (<i>Id.</i>) “Silence is not enough; the ‘FAA requires more.’” (<i>Id.</i>) “[C]lass arbitration, to the extent it is manufactured by [state law] rather than consen[t], is inconsistent with the FAA.” (<i>Id.</i> at 187.) The court finds that the subject arbitration agreement does not authorize class arbitration, and therefore, Plaintiff’s class claims cannot be arbitrated. If “parties did not agree to authorize class arbitration in their arbitration agreement,” a court should enter an “order dismissing class action allegations from the complaint.” (<i>Kinecta Alternative Fin. Sols., Inc. v. Superior Ct.</i> (2012) 205 Cal. App. 4th 506, 510–11.) Thus, the court DISMISSES Plaintiff’s class claims. Both the Federal Arbitration Act and California law provide for a stay of proceedings pending arbitration. (9 U.S.C. §3; CCP §1281.4.) As such, the court stays the action pending completion of arbitration and sets an ADR status conference for February 18, 2027 at 9:00 a.m. Defendant is ordered to give notice of this ruling.
14	30-2026-01555500 Hek vs. La Mirada Post Acute LLC	Plaintiff Humphrey Van Hek’s (“Plaintiff”) Motion to Compel Deposition of the Person Most Knowledgeable (“PMK”) of Defendant La Mirada Post Acute, LLC (“Defendant”) and for Production of Documents is GRANTED IN PART AND DENIED IN PART. Plaintiff seeks an order compelling the deposition of the Person Most Knowledgeable (“PMK”) of Defendant and the

		production of documents responsive to the requests in the deposition notice after Defendant did not appear for the May 15, 2026 noticed deposition. While the date was originally mutually agreeable to the parties' counsel, Defendant responded to Plaintiff's deposition notice with timely objections and stated that Defendant no longer agreed to produce a witness for the topics in the deposition notice. Instead, Defendant requested that the parties meet and confer and reach an agreement regarding the scope of testimony, appropriate limitations, applicable privacy and confidentiality protections, the need for a protective order or court guidance, the deposition format, and a mutually convenient deposition date. Both parties attempted to meet and confer, with Plaintiff proposing alternative dates and Defendant asking for an informal discovery conference, but the parties could not agree on how to proceed. The deposition topics and document requests in the deposition notice concern the identity and nature of involvement of each of the Defendants in the operations of the subject skilled nursing facility, the admissions process, the identification of witnesses, Defendant's compliance with applicable laws and licensing, Defendant's facility assessment, Defendant's staffing scheduling and process, and discovery related to Defendant's potential defenses based on arbitration agreements with class members and the reasoning behind their staffing procedure. Plaintiff contends that the deposition topics and document requests all concern class certification issues, including typicality, commonality and numerosity regarding the admissions process and scheduling of staff at the subject facility, as well as issues relating to alter ego liability among Defendants. Defendant's primary objections to the subject deposition notice are that the topics and document requests are overbroad, burdensome, and premature. However, Defendant did not move for a protective order, file a motion to quash, or seek a stay of discovery. "Although parties are free to communicate with potential class members before class certification, when they seek to enlist the aid of the court in doing so, it is appropriate for the court to consider 'the possibility of abuses in class-action litigation.'" (<i>Parris v. Superior Ct.</i> (2003) 109 Cal. App. 4th 285, 300.)
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		Courts should “identify any potential abuses of the class action procedure that may be created if the discovery is permitted, and weigh the danger of such abuses against the rights of the parties under the circumstances.” (<i>Id.</i> at 301.) It would be an abuse of a discretion for a court to allow precertification discovery when “the actual or potential abuse of the class action procedure outweighs the potential benefits that might be gained.” (<i>CVS Pharmacy, Inc. v. Superior Ct.</i> (2015) 241 Cal. App. 4th 300, 313.) On the other hand, “[i]t is an abuse of discretion for a trial court to determine class certification questions before the parties have an opportunity to conduct discovery and present evidence on certification issues.” (<i>Hendershot v. Ready to Roll Transportation, Inc.</i> (2014) 228 Cal. App. 4th 1213, 1226.) Further, “California law permits the use of discovery to get information necessary to plead a cause of action.” (<i>Union Mut. Life Ins. Co. v. Superior Ct.</i> (1978) 80 Cal. App. 3d 1, 11.) “[I]t is well established that relevancy of the subject matter does not depend upon a legally sufficient pleading, nor is it restricted to the issues formally raised in the pleadings.” (<i>Id.</i>) “Relevancy of the subject matter is determined by the potential as well as actual issues in the case[.]” (<i>Id.</i>) A party seeking discovery must identify a “particularized need for the documents at issue . . . or [] show how they would be relevant to the complaint or calculated to lead to the discovery of relevant evidence.” (<i>Terminals Equip. Co. v. City & Cnty. of San Francisco</i> (1990) 221 Cal. App. 3d 234, 247.) Here, the court finds that there is merit to some of Defendant’s objections to the deposition notice: • Topic 1 and Document Request No. 13 are overbroad in that they seek every agreement between Defendant and the other defendants without establishing the relevance of these broad categories of agreements to the claims at issue or the alter ego theory of liability. • Topics 4 and 5 are premature as they concern a potential defense that may be asserted by Defendant, but as there is a demurrer and motion to strike pending, there has been no answer filed by Defendant to establish such defenses. • Document Request No. 14 is overbroad in that it seeks every communication and document between Defendants that concern staffing, without establishing that such documents are relevant to the issue of understaffing at the facility.
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		Plaintiff has not demonstrated that these overly broad topics and document requests are relevant or are reasonably calculated to lead to the discovery of relevant evidence. Accordingly, the Motion is DENIED as to these Topics and Document Requests. IT IS ORDERED THAT, within ten (10) days of this ruling, the parties shall further meet and confer to discuss how these Topics and Document Requests may be narrowed to only information and documents relevant to Plaintiff's claims or reasonably calculated to lead to the discovery of admissible evidence regarding Plaintiff's claims in this action. A majority of the deposition topics and document requests are within the scope of the claims in this action: • Topic 2 concerns the admissions process for residents at the subject facility, which Plaintiff contends involved misrepresentations to putative class members. • Topic 3 concerns Defendant's compliance with applicable laws that are at issue in this action. • Topics 6-10 concerns Defendant's process for staffing the subject facility, which Plaintiff contends was understaffed. • Topics 11-12 concern the number of residents at the facility during the relevant time period, and the number who signed arbitration agreements. • Document Request Nos. 1-6, and 11-12 seek documents that reflect Defendant's staffing process. • Document Request Nos. 7-8 and 10 seek documents relating to Defendant's admission process for admitting residents at the facility. • Document Request No. 9 seeks arbitration agreements between Defendant and putative class members. • Document Request Nos. 15 and 16 seek documents relating to Defendant's license to operate the facility. The court finds that these Topics and Document Requests are well within the scope of the claims in this action and Defendant has provided no authority preventing Plaintiff from asserting this discovery, even at this early stage of litigation. Thus, the Motion is GRANTED as to these Topics and Document Requests. IT IS ORDERED THAT within forty (40) days of this ruling, Defendant shall produce a PMK for deposition on Topic Nos. 2-3, 6-12 and produce responsive documents to Document
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		Request Nos. 1-12 to Plaintiff. This deposition must occur on a mutually agreeable date within the forty (40) day period. Plaintiff's request for monetary sanctions is DENIED. Both parties failed to adequately meet and confer, and Defendant acted with substantial justification in opposing this Motion and asserting its objections. Plaintiff is ordered to give notice of this ruling to Defendants.
15	30-2026-01555557 Hernandez vs. Bellflower Skilled, LLC	Plaintiff Maria Elena Hernandez's ("Plaintiff") Motion to Compel the Deposition of the Person Most Knowledgeable ("PMK") of Defendant Bellflower Skilled, LLC ("Defendant" or "Bellflower"), and for Production of Documents is GRANTED IN PART as to Request for Production Nos. 2-6 and DENIED IN PART as to Request for Production No. 14. IT IS ORDERED THAT within forty (40) days of this ruling, Defendant shall produce responsive documents to Request for Production Nos. 2-6 to Plaintiff. As a threshold matter, after this Motion was filed, Defendant produced a PMK for deposition as well as responsive documents to some of the Requests for Production, so Plaintiff has narrowed the Motion to Compel only to Document Request Nos. 2-6 and 14. Request for Production Nos. 2-6 seek various forms, reports, facility assessments, and assignment sheets and schedules for the relevant time period, which are all relevant to adequacy of staffing at the facility. Plaintiff contends that these documents go to the commonality element of class certification. The court finds that these document requests are well within the scope of the claims in this action and Defendant has provided no authority preventing Plaintiff from asserting this discovery, even at this early stage of litigation. Thus, the Motion is GRANTED as to these Requests for Production. Request for Production No. 14 asks for "all DOCUMENTS exchanged between [Bellflower] and any named defendant in this action, or anyone acting on their behalf, during the time period of February 19, 2022, through February 19, 2026 which references, in whatsoever manner, the staffing of DIRECT CAREGIVERS in the FACILITY." Plaintiff contends that this document request seeks evidence to support an alter ego theory of liability. However, the request is overbroad as it seeks all

		documents exchanged by Defendants that reference in any manner the staffing at the facility. Plaintiff is only entitled to documents that are relevant or are reasonably calculated to lead to the discovery of relevant evidence regarding the alleged understaffing at the subject facility. (<i>Terminals Equip. Co. v. City & Cnty. of San Francisco</i> (1990) 221 Cal. App. 3d 234, 247 [“A party seeking discovery must identify a “particularized need for the documents at issue . . . or [] show how they would be relevant to the complaint or calculated to lead to the discovery of relevant evidence.”].) The Motion is DENIED as to this overly broad document request. Plaintiff’s request for monetary sanctions is DENIED. Notwithstanding the court’s ruling, Defendant acted with substantial justification in opposing this Motion and asserting its objections. Defendant Bellflower Skilled, LLC is ordered to give notice of this ruling.
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